

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Purchased:

-----X  
MANUEL JIMENEZ MONTERO,

Plaintiff,

-against-

**SUMMONS**

Jury Trial Demanded

Plaintiff designates Bronx County  
as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER MOHAMMAD  
SYED, Shield No. 13630, Individually and in his Official  
Capacity and POLICE OFFICERS "JOHN DOE" #1-5,  
Individually and in their Official Capacity (the name John Doe  
being fictitious, as the true names are presently unknown),

The basis of venue is:  
CPLR §504(3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
June 27, 2013

COHEN & FITCH LLP  
Attorneys for Plaintiff  
233 Broadway, Suite 1800  
New York, N.Y. 10279  
(212) 374-9115

TO:

MICHAEL A. CARDOZO  
Corporation Counsel of the City of New York  
Attorney for Defendant THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

PO MOHAMMAD SYED  
52<sup>nd</sup> Precinct  
Shield No. 13630  
3016 Webster Avenue  
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X

MANUEL JIMENEZ MONTERO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
MOHAMMAD SYED, Shield No. 13630, Individually  
and in his Official Capacity and POLICE OFFICERS  
“JOHN DOE” #1-5, Individually and in their Official  
Capacity (the name John Doe being fictitious, as the true  
names are presently unknown),

Defendants.

**COMPLAINT**

**Jury Trial Demanded**

**Index No.**

**BASIS FOR VENUE:**

**CPLR § 504(3)**

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Plaintiff MANUEL JIMENEZ, by his attorneys, COHEN & FITCH LLP, complaining of  
the defendants, respectfully alleges as follows:

**FACTS**

1. Plaintiff MANUEL JIMENEZ is a Hispanic male who was falsely arrested in Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. Mohmmad Syed and P.O.s "JOHN DOE" #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about April 20, 2012 in the County of Bronx, City, and State of New York, plaintiff MANUEL JIMENEZ MONTERO was driving in the vicinity of Creston Avenue and Fordham Road in Bronx, New York.

9. At the aforesaid time and place, claimant was stopped by NYPD officers at a traffic checkpoint.

10. After seeing plaintiff's license, defendant officers immediately place claimant under arrest even though his license was valid.

11. At no time on April 20, 2012, did defendants possess probable cause to arrest plaintiff.

12. At no time on April 20, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

13. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search.

14. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.

15. Plaintiff was charged with Criminal Possession of a Forged Instrument.

16. At no time on April 20, 2012, did defendant possess forged instrument or behave unlawfully in any way.

17. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office.

18. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely stated that plaintiff possessed a forged instrument.

19. As a result of his unlawful arrest, plaintiff MANUEL JIMENEZ MONTERO spent approximately twenty-four (24) hours in police custody before and approximately six (6) months making court appearances before all charges against him were dismissed in their entirety on October 10, 2012.

20. As a result of the foregoing, plaintiff MANUEL JIMENEZ MONTERO sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “20” with the same force and effect as if fully set forth herein.

22. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

23. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF**  
**FALSE ARREST UNDER 42 U.S.C. § 1983**

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “26” with the same force and effect as if fully set forth herein.

28. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

29. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. Defendants misrepresented and falsified evidence before the Bronx County District Attorney. Specifically, defendant falsely swore that he was trained on the recognition of forged documents and recognized plaintiff's license to be forged.

32. Defendants did not make a complete and full statement of facts to the District Attorney.

33. Defendants withheld exculpatory evidence from the District Attorney.

34. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

35. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

36. Defendants acted with malice in initiating criminal proceedings against plaintiff.

37. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

38. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

39. Defendants acted with malice in continuing criminal proceedings against plaintiff.

40. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

41. Notwithstanding the perjurious and fraudulent conduct of defendants, all charges against plaintiff were terminated in his favor on or about October 10, 2012.

42. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF  
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL  
UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "42" as if the same were more fully set forth at length herein.

44. Defendants created false evidence against plaintiff.

45. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

46. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings. Specifically, defendant falsely swore that he was trained on the recognition of forged documents and recognized plaintiff's license to be forged.

47. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants

violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

48. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**WHEREFORE**, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York  
June 27, 2013

BY:   
GERALD COHEN  
JOSHUA FITCH  
COHEN & FITCH LLP  
Attorneys for Plaintiff  
233 Broadway, Suite 1800  
New York, N.Y. 10273  
(212) 374-9115  
jfitch@cohenfitch.com  
gcohen@cohenfitch.com



**ATTORNEY'S VERIFICATION**

**GERALD COHEN**, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff MANUEL JIMENEZ MONTERO in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
July 23, 2013

  
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**Gerald Cohen**

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Plaintiff,

-against-

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Capacity (the name John Doe being fictitious, as the true  
names are presently unknown),

Defendants

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SUMMONS AND COMPLAINT

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Attorneys for

**COHEN & FITCH, LLP**  
*Plaintiff*  
233 BROADWAY  
SUITE 1800  
NEW YORK, NEW YORK 10279  
(212) 374-9115

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To:

Signature (Rule 130-1.1a)

Attorneys(s) for

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Service of a copy of the within

is hereby admitted

Dated:

.....  
Attorneys(s) for

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**PLEASE TAKE NOTICE**

☐ that the within is a (certified) true copy of a  
NOTICE OF entered in the office of the clerk of the within named Court on  
ENTRY

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.  
NOTICE OF one of the judges of the within name Court,  
SETTLEMENT at  
on . at M.

Dated:

ATTORNEY FOR

**COHEN & FITCH, LLP**  
*Plaintiff*  
233 BROADWAY, SUITE 1800  
NEW YORK, N.Y. 10279  
(212) 374-9115